

VCU336099 PNC Bank vs. Golden Star Citrus, inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-21

Motion: Motion for Writ of Possession re: Defendant Golden Star Citrus, Inc.

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Re: PNC Bank vs. Golden Star Citrus, inc.

Case No.: VCU336099

Date: September 21, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Writ of Possession re: Defendant Golden Star Citrus, Inc.

Tentative Ruling: To deny the writ without prejudice

Facts

The complaint in this matter alleges breach of written agreements, claim and delivery, conversion and account stated against Defendants Golden Star Citrus, Inc. and Michael Joe Chavez.

On July 1, 2026, Plaintiff filed this motion for writ of possession as to Defendant Golden Star.

Plaintiff notes that on or about January 15, 2025, Defendant Golden Star entered into a written Lease Agreement ending in account number 183 ("Agreement 183") with Plaintiff for a lease with purchase option of equipment as to two (2) 2024 Bobcat G25N-7 Bobcats (SN: FGA 14-4550-08221, FGA14-4550-08695) and three (3) 2024 Bobcat GC25S-9 Bobcats (SN: FGA1E-1290-04314, FGA1E-4120-03429, FGA1E-1290-03109) (Declaration of McGinley ¶¶1-5; Ex. 2)

Plaintiff performed all of the terms and conditions of Agreement 183 required to be performed by Plaintiff. (Declaration of McGinley ¶6.)

On or about October 22, 2025, Defendant Golden Star failed to make the payment due on Agreement 183 and Plaintiff has elected, under the terms of Agreement 183, to accelerate the balance due of \$132,369.60, plus default interest, and other fees and costs accruing thereunder, including reasonable attorneys' fees and costs. (Declaration of McGinley ¶¶7-11.)

Further, that on or about July 22, 2021, Defendant Golden Star entered into a written Lease Agreement ending in account number 166 ("Agreement 166") with Plaintiff for a lease with purchase option of equipment as to one (1) Doosan G18S-4LP Ult Truck (SN: FOA02-1790-03260) (Declaration of McGinley ¶12- Ex. 3.)

Plaintiff performed all of the terms and conditions of Agreement 166 required to be performed by Plaintiff. (Declaration of McGinley ¶13.)

On or about September 8, 2025, Defendant Golden Star failed to make the payment due on Agreement 166 and Plaintiff has elected, under the terms of Agreement 166, to accelerate the balance due of \$18,291.22, plus default interest, and other fees and costs accruing thereunder, including reasonable attorneys' fees and costs. (Declaration of McGinley ¶¶14-18.)

As part of the terms of Agreements 183 and 166 Defendant Golden Star granted a security interest in the collateral that Plaintiff agreed to finance, including the equipment noted above.

Plaintiff estimates the total fair market value of the collateral is \$150,000. (Declaration of McGinley ¶¶21, 28.)

Further that "Plaintiff is informed and believes and thereon alleges that the Collateral is in possession or under the control of the Defendants GOLDEN STAR and MICHAEL JOE CHAVEZ, an individual (collectively "Defendants"), and each of them" and "Plaintiff is informed and believes that the Collateral is currently located at:

- a. 20373 W. Cajon Ave., Woodlake, CA 93286;
- b. 4040 W. Robinwood Ct., Visalia, CA 93291;
- c. 20373 Avenue 352, Woodlake, CA 93286; or
- d. Such other location known to Defendants." (Declaration of McGinley ¶¶22, 23.)

On August 6, 2026, Plaintiff filed a proof of service as to Defendant Golden Star via substitute service on Defendant Golden Star's agent for service of process via "Miranda England person in charge Gender: Female Age: 45 Height: 5'7" Weight: 150 Race: white Hair: blonde Other" on August 4, 2026 at 2:00 pm at 20373 W Cajon Ave Woodlake, CA 93286.

However, the Court notes this proof of service lacks a declaration of due diligence as to attempts to personally serve Defendant Golden Star via its agent for service of process.

Authority and Analysis

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought." (Code Civ. Proc. § 512.010(a).)

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Proc. § 512.030.)

Here, the Court lacks a sufficient proof of service with respect to Defendant Golden Star as to the declaration of diligence required to effectuate substitute service. As such, the Court cannot find the Defendant Golden Star has been served.

Pursuant to Code of Civil Procedure section 512.010(b), the application must be submitted under oath and include:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

"The writ will be issued if the court finds that the plaintiff's claim is probably valid and the other requirements for issuing the writ are established." (Code Civ. Proc. § 512.040(b).) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. § 511.090.)

Here, the basis of Plaintiff's claims appears to be breach of Agreements 166 and 183 and Defendant Golden Star's default thereunder.

"The standard elements of a claim for breach of contract are: '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

The declaration of McGinley sufficiently establishes the existence of Agreements 166 and 183, Plaintiff's performance thereunder, Defendant Golden Star's breach as to failure to pay and a calculation of damages under each Agreement.

The Court further finds a sufficient showing that the collateral has been wrongly detained by Defendant Golden Star following the breach.

The Court further finds a sufficient showing as to the particular description of the collateral and its estimate value.

Additionally, the Court finds a sufficient showing the collateral was not taken from Plaintiff for a tax, assessment, or fine, pursuant to statute, or seized under execution against Plaintiff.

However, the Court does not find Paragraph 23 of the declaration sufficient as to the probable cause to believe the collateral is located at three locations and "Such other location known to Defendants." There is no factual basis or personal knowledge presented that the collateral resides in these locations, including a location with a general description as "...other location known to Defendants."

Last, the Court notes, prior to the issuance of a writ of possession, the Plaintiff must file an undertaking "in an amount not less than twice the value of the defendant's interest in the property or in a greater amount." (Code Civ. Proc. § 515.010(a).)

The application, therefore, is denied without prejudice. Plaintiff retains the right to make a subsequent application under Code of Civil Procedure section 512.090 as to the deficiencies identified herein.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.